



File No.: EXP202304933

RESOLUTION OF

PROCEEDING OF WARNING

From the proceeding initiated by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On March 27, 2023, a complaint was filed with the Spanish Agency for Data Protection. The complaint is directed against A.A.A. with NIF ***NIF.1 (hereinafter, the complained party). The reasons for the complaint are as follows:

The complainant states that they are a neighbor of the complained party and that the latter has installed a video surveillance system with cameras that unjustifiably capture an excessive area of the public road and the neighboring houses, including the complainant's home, and this without the consent of the neighboring property owners.

It is noted that the complainant is the owner of the properties located at ***ADDRESS.1, and the complained party, in turn, is the owner of the properties located at ***ADDRESS.2.

Along with the complaint, two images of the location of two cameras and the affected areas are provided. Both cameras are located on the facades of the houses, one of them at a corner at the height of the first floor and the other at the upper part of another area of the house at about four meters high, both oriented towards the outside. Regarding the first one, the complainant states that it is oriented towards the public road.

In the photograph corresponding to the first of the aforementioned cameras, an informative sign can be seen warning about the existence of the video surveillance system, although this image does not allow for the content to be appreciated.

Additionally, a third image is provided in which the complainant and access to their home can supposedly be seen, according to what they indicate. They add that this image was provided to them by a neighbor through the WhatsApp messaging application, indicating based on this that the complained party has shared this image with third parties.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), this complaint was forwarded to the complained party, so that they could analyze it and inform this Agency within one month of the actions taken to comply with the requirements established in the data protection regulations.

The forwarding was carried out in accordance with the rules established in Law 39/2015, of C/ Jorge Juan, 6

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1st of October, of the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP) by postal notification, recorded in the file as delivered on May 2, 2023.

On June 2, 2023, this Agency received a written response from the party being claimed against, indicating that they are the owner of two houses, one facing the other and separated by a patio also owned by them. In this written response, they state the following:

“1. The undersigned is the owner of two buildings located at ***ADDRESS.2, situated one in front of the other and separated by a patio, also owned by them.

Not constituting their habitual residence and being in an open space, on the roof of building no. XX and exclusively focusing on the existing barbecue in the same and the façade of the house located opposite, a surveillance camera is installed, a photograph of which is attached (document no. 1).

The undersigned responsibly declares that the second camera appearing in the photograph (on the roof) is fictitious.

I also attach a photograph of the monitor used to view the images, in which the field of vision of the operational camera is clearly visible (documents 2).

2. The space between the buildings forms the patio owned by the undersigned. In any case, despite being used on certain occasions as a passage, it does not constitute a public road, as evidenced by the certification issued by the ***LOCALITY.1 Town Hall, which I accompany under document number 3. Nevertheless, there is a sign warning of the existence of a video surveillance area (Document no. 4). This sign is also observed in the photograph provided as document no. 2.

3. The images are reviewed and deleted weekly; with the only exception of those that this party will use as evidence, in defense of their legitimate interests, in judicial proceedings against them: (...)"

Regarding the operational camera, which according to the party being claimed against captures the barbecue area and the patio between the two houses they own, they provide an image of its field of vision. In this image, access to a house, which the party being claimed against states is their property, and a space occupied by terrace furniture and a barbecue can be seen. On the left side of the image, it is evident that this area separating the two houses of the party being claimed against is open to a public road, which is not disproportionately captured by the camera, and on the other hand, that this same area that the party being claimed against refers to as "patio" is also open on its right side to an alley leading to other houses, which can be seen in the background of the image. This area coincides with the one leading to the house of the claiming party, according to the indications made by them. They provide another photograph with the same informative sign that can already be seen in the images provided by the claiming party. This image also does not allow seeing the content of the sign, only that it appears filled out with some information. In this photograph, it is clearly seen that the so-called "patio" is open to a public road.

THIRD: On June 27, 2023, in accordance with Article 65 of the LOPDGDD, the complaint filed by the claiming party was admitted for processing.

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FOURTH: On December 10, 2024, the Presidency of the Spanish Agency for Data Protection agreed to initiate a warning procedure against the complained party for the alleged infringement of Article 5.1.c) of the GDPR, classified under Article 83.5 of the GDPR.

FIFTH: The notification of the aforementioned initiation agreement, which was carried out in accordance with the regulations established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was received on December 11, 2024, as evidenced by the acknowledgment of receipt in the file.

SIXTH: On December 23, 2024, a written statement of allegations was received from the complained party, which, in summary, includes the following considerations:

"I inform you that this camera, the only one that works, only captures my patio (I will provide deeds of the houses) since I have 2 houses, one in front of the other, ***ADDRESS.2, I have moved it a little so that it does not capture anything from my neighbors' façade, as they pass freely through the open patio. I attach a screenshot of the camera. In any case, as it was before, it did not infringe on their privacy since it does not record anything inside their property.

I cannot provide documentation of the fictitious one because I found it in the trash and assembled it, but if it is a problem, let me know and I will remove it.

(Image with the new field of view captured by the camera)

As you can see, it only shows the patio and the entrance door of XX, which is my property. At no time does it capture anything from their part of the house; they only have a back door of their property.

If it causes any inconvenience, I would quickly remove it; if you believe I am violating any law, there would be no issue in removing it, as this camera is exclusively for home security.

I also attach a Google photo so you can see how the houses are arranged and the camera's field of view.

(general plan of the area)

(...)

If with all these explanations you still believe that I am infringing any law, please let me know and I

would remove the camera as soon as you respond.

(...)"

In the image showing the new field of view of the camera, it is noted that it has been reoriented to avoid capturing the access to the alley leading to the homes of the complaining party, although it continues to capture the space existing between the two properties of the complained party.

In the area plan provided, it is confirmed that the space existing between the homes of the complained party is an open area to the public road and that, on its opposite side, it provides access to an alley that leads to the homes of the complaining party and other areas of the municipality, as marked in the image by the complained party.

In view of all that has transpired, the Spanish Agency for Data Protection considers the following proven facts in the present procedure,

PROVEN FACTS

FIRST: The complaining party and the complained party are respective owners of adjacent homes.

SECOND: The complained party is the owner of two homes located at ***ADDRESS.2, situated one in front of the other and separated by a space also owned by them. This space is open on two sides; one of these sides is adjacent to a public road and, on the opposite side, it is open to an alley that leads to the homes of the complaining party and other areas of the municipality.

THIRD: The complained party has installed a surveillance camera on the façade of one of their homes, facing outward, which captures the intermediate exterior space existing between their two homes, referred to in Proven Fact Second, which the complained party calls "patio."

The complained party has stated that this surveillance camera is operational. Its field of view, at the time this AEPD received the response from the complained party to the transfer of the complaint, captured a barbecue area and the space existing between the two homes. The field of view at that time included access to a home, which the complained party claims is theirs, and a space occupied by terrace furniture and a barbecue. On the left side of that field of view, it is noted that this intermediate area separating the two homes of the complained party is open to a public road, which is not disproportionately captured by the camera, and on the other side, that this same area is also open on its right side to an alley that leads to other homes, which can be seen in the background of the captured image.

FOURTH: In their response to the transfer of the complaint formalized by this AEPD, the complained party stated the following:

"Not constituting your habitual residence and being in an open space, on the roof of construction no. XX and focusing exclusively on the existing barbecue and the façade of the house situated in front, a surveillance camera is installed..."

2. The space between the constructions forms the patio owned by the undersigned. In any case, despite being used on certain occasions as a passage, it does not constitute a public road..."

FIFTH: In their written allegations regarding the opening of the present warning procedure, the complained party stated the following:

"I inform you that this camera, the only one that works, only captures my patio (I will provide deeds of the houses) since I have 2 houses, one in front of the other, ***ADDRESS.2, I have moved it a little so that it does not capture anything from my neighbors' façade, as they pass freely through the open patio..."

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SIXTH: Once the opening of this warning procedure is known, the responding party has demonstrated that it has modified the field of view captured by the surveillance camera in question so as not to capture the access to the alley leading to the homes of the claiming party nor the façade of these homes, although it continues to capture the intermediate space existing between the two properties of the responding party.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter, LOPDGDD), the Presidency of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

II

Procedure

Article 63.2 of the LOPDGDD states: “The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures.”

Considering the nature of the facts that have led to these proceedings and the concurrent circumstances, this warning procedure is being followed in accordance with the provisions of Article 64.3 of the LOPDGDD.

The procedure shall have a maximum duration of six months from the date of the initiation agreement. After this period, it will expire, and consequently, the proceedings will be archived, in accordance with the provisions of Article 64 of the LOPDGDD.

III

Preliminary Issues

Article 4.1) of the GDPR defines “personal data” as: “any information relating to an identified or identifiable natural person (‘the data subject’); an identifiable natural person is one who can be identified, directly or indirectly, in particular by reference to an identifier, such as a name, an identification number, location data, an online identifier, or one or more factors specific to the physical, physiological, genetic, mental, economic, cultural, or social identity of that natural person.”

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Article 4.2) of the GDPR defines “processing” as: “any operation or set of operations performed on personal data or sets of personal data, whether by automated means or not, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, communication by transmission, dissemination or otherwise making available, alignment, combination, restriction, erasure or destruction.”

Article 4.7) of the GDPR defines the “data controller” or “controller” as: “the natural or legal person, public authority, agency, or other body that, alone or jointly with others, determines the purposes and means of the processing; where the purposes and means of such processing are determined by Union or Member State law, the controller or the specific criteria for its designation may be provided for by Union or Member State law.”

The physical image of a person, according to Article 4.1 of the GDPR, is personal data and its protection is therefore subject to this Regulation.

Images captured by a system of cameras or video cameras are personal data, so their processing is subject to data protection regulations.

In this case, in accordance with the provisions of Articles 4.1 and 4.2 of the GDPR, there is evidence of the processing of personal data, since the responding party carries out, among other processing activities, the collection of personal data by having a surveillance system that may be capturing images of natural persons.

The responding party carries out this activity in its capacity as the data controller, as it is the one who determines the purposes and means of such activity under Article 4.7 of the GDPR.

It is therefore pertinent to analyze whether the processing of personal data carried out by the

responding party through the surveillance system is in accordance with the provisions of the GDPR.

IV

Obligations regarding Surveillance

Regarding processing for surveillance purposes, Article 22 of the LOPDGDD establishes that natural or legal persons, public or private, may carry out the processing of images through camera or video camera systems for the purpose of preserving the safety of persons and property, as well as their facilities.

However, the processing of images through a surveillance system, in order to comply with current regulations (Article 22 of the LOPDGDD), must meet the following specific requirements:

1.- Natural or legal persons, public or private, may establish a surveillance system for the purpose of preserving the safety of persons and property,

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as well as their facilities.

It must be assessed whether the intended purpose can be achieved in a less intrusive manner for the rights and freedoms of citizens. Personal data should only be processed if the purpose of the processing cannot reasonably be achieved by other means, in accordance with Recital 39 of the GDPR.

2.- The images obtained may not be used for a subsequent purpose incompatible with the one that motivated the installation of the video surveillance system.

3.- The duty to inform the affected parties as provided in Articles 12 and 13 of the GDPR, and Article 22 of the LOPDGDD must be fulfilled.

In this regard, a "layered information" system is foreseen in relation to video surveillance.

The first layer must refer, at a minimum, to the existence of the processing (video surveillance), the identity of the data controller, the possibility of exercising the rights provided in Articles 15 to 22 of the GDPR, and where to obtain more information about the processing of personal data.

This information will be contained in a device placed in a sufficiently visible location and must be provided in advance.

The information in the second layer must be available in a location easily accessible to the affected party, whether it be an information sheet at a reception, cashier, etc., placed in a visible public space or on a web address, and must refer to the remaining elements of Article 13 of the GDPR.

It is not necessary to specify the precise location of the video surveillance equipment.

This duty of information will be considered fulfilled by placing an informative device in a sufficiently visible location, and at a minimum, at the entrances to the monitored areas, whether indoors or outdoors. In the event that the monitored space has several entrances, this sign indicating the video surveillance area must be placed at each of them.

This information must be provided in advance - Recital 39 of the GDPR. The aim is to clarify the context of the surveillance.

4.- The processing of images through the installation of camera or video camera systems must be lawful and comply with the principles of proportionality and data minimization, as already indicated.

5.- The images may be retained for a maximum period of one month, except in those cases where they must be retained to prove the commission of acts that threaten the integrity of persons, property, or facilities.

In this second case, they must be made available to the competent authority within a maximum period of 72 hours from the time knowledge of the existence of the recording is obtained.

6.- The data controller must maintain a record of activities of the processing carried out under its responsibility, which includes the information referred to in Article 30.1 of the GDPR.

7.- The data controller must conduct a risk analysis or, where appropriate, a data protection impact assessment, to detect the risks arising from the implementation of the video surveillance system, evaluate them, and, where applicable, adopt appropriate security measures.

8.- When a security breach occurs that affects the processing of cameras for security purposes, whenever there is a risk to the rights and freedoms of individuals, it must be reported to the AEPD within a maximum period of 72 hours.

A security breach is understood as the destruction, loss, or accidental or unlawful alteration of personal data transmitted, stored, or otherwise processed, or the unauthorized communication or access to such data.

9.- When the system is connected to an alarm center, it may only be installed by a private security company that meets the requirements set forth in Article 5 of Law 5/2014 on Private Security, of April 4.

The Spanish Data Protection Agency provides access through its website [<https://www.aepd.es>] to:

- the legislation on personal data protection, including the GDPR and the LOPDGDD (section "Reports and Resolutions" / "Regulations"),
- the Guide on the use of video cameras for security and other purposes,
- the Guide for compliance with the duty to inform (both available in the "Guides and Tools" section).

V

Unfulfilled obligation. Data minimization

Article 5.1 c) of the GDPR states the following: Personal data shall be:

“adequate, relevant and limited to what is necessary in relation to the purposes for which they are processed (‘data minimization’).”

Regarding processing for video surveillance purposes, Article 22 of the LOPDGDD establishes the following:

“1. Natural or legal persons, public or private, may carry out the processing of images through camera or video camera systems for the purpose of preserving the security of persons and property, as well as their facilities.

2. Images of public roads may only be captured to the extent that it is necessary.”

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essential for the purpose mentioned in the previous section.

However, it will be possible to capture public spaces to a greater extent when necessary to guarantee the security of strategic assets or facilities or infrastructures related to transportation, without in any case allowing the capture of images from within a private home.

3. The data will be deleted within a maximum period of one month from its capture, unless it must be retained to prove the commission of acts that threaten the integrity of persons, assets, or facilities. In such cases, the images must be made available to the competent authority within a maximum period of seventy-two hours from the time knowledge of the existence of the recording is obtained.

The obligation of blocking provided for in Article 32 of this organic law shall not apply to these treatments.

4. The information duty provided for in Article 12 of Regulation (EU) 2016/679 shall be deemed fulfilled by placing an informative device in a sufficiently visible location identifying, at a minimum, the existence of the processing, the identity of the controller, and the possibility of exercising the rights provided for in Articles 15 to 22 of Regulation (EU) 2016/679. An internet connection code or address to this information may also be included in the informative device.

In any case, the data controller must keep the information referred to in the aforementioned regulation available to the affected parties.

5. Under Article 2.2.c) of Regulation (EU) 2016/679, the processing by a natural person of images that only capture the interior of their own home is considered excluded from its scope of application. This exclusion does not cover processing carried out by a private security entity that has been contracted to monitor a home and has access to the images.

6. The processing of personal data obtained from images and sounds captured through the use of cameras and camcorders by the Security Forces and Corps and by the competent authorities for

monitoring and control in penitentiary centers and for the control, regulation, monitoring, and discipline of traffic shall be governed by the legislation transposing Directive (EU) 2016/680, when the processing has purposes of prevention, investigation, detection, or prosecution of criminal offenses or enforcement of criminal sanctions, including protection and prevention against threats to public safety. Outside of these cases, such processing shall be governed by its specific legislation and, subsidiarily, by Regulation (EU) 2016/679 and this organic law.

7. The provisions of this article are understood without prejudice to what is provided in Law 5/2014, of April 4, on Private Security and its implementing provisions.

8. The processing by the employer of data obtained through camera or camcorder systems is subject to the provisions of Article 89 of this organic law.

The processing of personal data is subject to the other principles of processing contained in Article 5 of the GDPR. We will highlight the principle of data minimization contained in Article 5.1.c) of the GDPR, which states that personal data shall be “adequate, relevant, and limited to what is necessary in relation to the purposes for which they are processed.”

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This means that in a specific treatment, only relevant personal data that is pertinent and strictly necessary for the purpose for which it is processed may be handled. The processing must be adjusted and proportional to the intended purpose. Relevance in the processing of data must occur both at the time of data collection and in the subsequent processing of the same.

In accordance with the above, the processing of excessive data must be restricted or the data must be deleted.

The application of the principle of data minimization in the area of video surveillance implies that images of public roads cannot be captured, since the processing of images in public places can only be carried out by the Security Forces and Bodies with prior government authorization.

On some occasions, for the protection of private spaces where cameras have been installed on façades or indoors, it may be necessary to record a portion of the public road to ensure the purpose of security.

That is to say, cameras and video cameras installed for security purposes may not capture images of the public road unless it is essential for that purpose or it is impossible to avoid it due to their location. In such extraordinary cases, the cameras may only capture the minimum portion necessary to preserve the safety of persons and property, as well as their facilities.

Under no circumstances will the use of surveillance practices beyond the environment subject to the installation be permitted, and in particular, it must not affect surrounding public spaces, adjacent buildings, and vehicles other than those accessing the monitored space.

If there is an easement of passage over a property or land, the processing of data would not be excluded from the scope of application of data protection regulations, since, being an area subject to an easement of passage, it is accessible not only by the owner of the dwelling and the persons authorized by them but also by third parties who are the holders of the dominant estate of the easement.

Furthermore, the installed cameras cannot capture images of third-party private spaces and/or public spaces without a duly justified cause, nor can they affect the privacy of passersby who freely transit the area.

Therefore, the placement of cameras towards the private property of neighbors or affecting their private sphere without a justified cause is not permitted.

Images in spaces owned by third parties cannot be captured or recorded without the consent of their owners or, where applicable, of the persons present in those spaces.

In summary, the installation of video surveillance systems in family homes must comply with data protection regulations if the cameras are installed outdoors and can capture images of people at entrances, façades, or C/ Jorge Juan, 6

party walls or within the interior of their homes.

In the present case, from the documentation submitted to the file, it appears that the responding party has a surveillance camera installed on the facade of one of the two properties it owns located at ***ADDRESS.2, situated opposite each other. This camera, at the time of the initiation of the present warning procedure, captured the intermediate space existing between the two properties owned by the responding party, which it also holds title to.

However, the field of vision included the area that provides access to the neighboring properties, owned by the claiming party, and part of the facades of these properties.

On the other hand, it is taken into account that the indicated space existing between the properties owned by the responding party is traversed by third parties, as acknowledged by the responding party itself in its writings addressed to this AEPD, which are noted in the Established Facts of this resolution. This is a passage area that is open on one side to a public road and open on its opposite side to an alley that provides access to other neighboring properties and other areas of the municipality. The capture of this space by a surveillance camera can, consequently, capture the image of individuals who pass through this area, thereby affecting their right to personal data protection.

Subsequent to the initiation of the present warning procedure, the responding party has demonstrated that it has modified the angle of vision of the camera in question, so that it no longer captures access to the neighboring properties and their facade, but continues to capture the intermediate space existing between the properties of the party, which, as indicated, is susceptible to being traversed by third parties.

Therefore, in accordance with the evidence available, it is considered that the known facts constitute an infringement attributable to the responding party for violation of Article 5.1.c) of the GDPR transcribed above.

VI

Classification of the infringement of Article 5.1.c) of the GDPR and qualification for the purposes of prescription

In accordance with the evidence available, it is considered that the facts presented violate the provisions of Article 5.1.c) of the GDPR, which constitutes the commission of an infringement classified under Article 83.5 of the GDPR, which states the following:

“Violations of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of an enterprise, an amount equivalent to 4% at most of the total annual global turnover of the previous financial year, opting for the higher amount:

a) the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9; (...).”

For its part, the LOPDGDD in its Article 71, Infringements, states that:

“Acts and behaviors referred to in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679, as well as those contrary to this organic law, constitute infringements.”

For the sole purposes of the statute of limitations for infringements, the infringement indicated in the previous paragraph is considered very serious in accordance with Article 72.1 of the LOPDGDD, which establishes that:

“Based on what is established in Article 83.5 of Regulation (EU) 2016/679, the following shall be considered very serious and shall prescribe after three years: infringements that constitute a substantial violation of the articles mentioned therein and, in particular, the following:

a) The processing of personal data in violation of the principles and guarantees established in Article 5 of Regulation (EU) 2016/679.

(...).”

VII

Warning

Without prejudice to the provisions of Article 83 of the GDPR, the aforementioned Regulation provides in paragraph 2.b) of Article 58 "Powers" the following:

"Each supervisory authority shall have all of the following corrective powers indicated below:

(...)

b) issue a warning to any controller or processor when the processing operations have infringed the provisions of this Regulation;

(...)"

Furthermore, Article 64 of the LOPDGDD, which regulates the "Form of initiation of the procedure and duration," states in its third paragraph that:

"3. When appropriate, taking into account the nature of the facts and duly considering the criteria established in Article 83.2 of Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, the Spanish Agency for Data Protection, after hearing the controller or processor, may issue a warning, as well as order the controller or processor to adopt corrective measures aimed at ending the possible non-compliance with data protection legislation in a specified manner and within the specified timeframe.

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The procedure shall have a maximum duration of six months from the date of the initiation agreement. Once this period has elapsed, it will expire, and consequently, the proceedings will be archived. The provisions of the second and third paragraphs of section 2 of this article shall apply in this case.

In the present case, given the nature of the facts and circumstances outlined in the preceding Legal Grounds, it is deemed appropriate to issue a warning to the respondent for the infringement of Article 5.1.c) of the aforementioned GDPR.

VIII

Corrective Measures

It is appropriate to impose on the respondent the adoption of corrective measures to put an end to the non-compliance with personal data protection legislation, in this case, Article 5.1.c) of the GDPR, in accordance with the provisions of the aforementioned Article 58.2.d) of the GDPR, which states that each supervisory authority may "order the controller or processor to ensure that the processing operations are compliant with the provisions of this Regulation, where appropriate, in a specific manner and within a specified period..."

Thus, the respondent may be required to align its actions with personal data protection regulations, to the extent expressed in the previous Legal Grounds.

In this act, the alleged infringement committed and the facts that could lead to this possible violation of data protection regulations are established, from which it is clearly inferred what measures are to be adopted, without prejudice to the fact that the type of procedures, mechanisms, or specific instruments for implementing them corresponds to the sanctioned party, as it is the data controller who fully understands its organization and must decide, based on proactive responsibility and a risk-based approach, how to comply with the GDPR and the LOPDGDD.

However, in this case, regardless of the above, in accordance with the available evidence, it is agreed to require the respondent to adopt the following measures within one month from the date of the enforceability of this resolution:

- Provide evidence of having reoriented the surveillance camera in question to avoid capturing areas that may be traversed by third parties, which may also be eliminated by establishing privacy masks that prevent capturing such areas. If the reorientation of the camera or the establishment of privacy masks is not sufficient to prevent the capture of that area, the camera must be removed from its current location.

It is warned that failure to comply with the order to adopt measures imposed by this authority may result in further action.

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The entity referred to in this resolution may be considered as having committed an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in its articles 83.5 and 83.6, which may lead to the initiation of further administrative sanctioning procedures.

Therefore, in accordance with the applicable legislation,
the Presidency of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO ISSUE A WARNING to A.A.A., with NIF ***NIF.1, for an infringement of Article 5.1.c) of the GDPR, classified under Article 83.5 of the GDPR.

SECOND: TO ORDER A.A.A., with NIF ***NIF.1, to, pursuant to Article 58.2.d) of the GDPR, within one month from the date this resolution becomes final and enforceable, provide evidence of having adopted the necessary measures to align its actions with personal data protection regulations, as expressed in the Legal Basis VIII of this resolution; and to provide evidence to this Agency, within the same timeframe, of the measures adopted.

THIRD: TO NOTIFY this resolution to A.A.A.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Presidency of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law. Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the final resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency does not become aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension to be concluded.

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The Deputy Director General of Data Inspection, in accordance with Article 48.2 LOPDGDD, due to the vacancy of the Presidency and Deputy Presidency

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